

HOUSE No. 4261

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regulating kratom sales in the Commonwealth (Ty's Bill).

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/12/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>1/12/2026</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>1/20/2026</i>

HOUSE No. 4261

By Representative Garry of Dracut, a petition (subject to Joint Rule 12) of Colleen M. Garry for legislation to regulate the sale of kratom. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regulating kratom sales in the Commonwealth (Ty's Bill).

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to prevent deaths with the unregulated sale of Kratom, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public health.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 SECTION 1. Section 31 of chapter 94C of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after CLASS A, subsection (d)(8) in line 103,
3 the following subsections:-
- 4 (9) 7-hydroxymitragynine
- 5 (10) hydroxymitrgynine
- 6 (11) mitragynine